

HOUSE No. 4523

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas W. Moakley and Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Nantucket conservation commission to convey a certain parcel of land situated in the town for purposes of conveyance to the town of Nantucket under the care, custody, management and control of the select board and the town of Nantucket to convey certain land in the town of Nantucket held for open space, passive recreation or conservation purposes to the Nantucket islands land bank for the purposes pursuant to its legislation and/or to the Sconset Trust, Inc. For open space, conservation and passive recreation purposes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>9/5/2025</i>

HOUSE No. 4523

By Representative Moakley of Falmouth and Senator Cyr, a joint petition (accompanied by bill, House, No. 4523) of Thomas W. Moakley (by vote of the town) for legislation to authorize the town of Nantucket to convey a certain parcel of land in said town to the Nantucket Islands Land Bank and to the Sconset Trust, Inc. Municipalities and Regional Government. [Local Approval Received.]

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2946 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Nantucket conservation commission to convey a certain parcel of land situated in the town for purposes of conveyance to the town of Nantucket under the care, custody, management and control of the select board and the town of Nantucket to convey certain land in the town of Nantucket held for open space, passive recreation or conservation purposes to the Nantucket islands land bank for the purposes pursuant to its legislation and/or to the Sconset Trust, Inc. For open space, conservation and passive recreation purposes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Pursuant to Article 97 of the Amendments to the Constitution of the
2 Commonwealth of Massachusetts and notwithstanding any provisions of any general or special
3 law to the contrary, the town of Nantucket acting by and through its Conservation Commission,
4 is hereby authorized to convey a certain parcel of land situated at 35 Grove Lane, as shown on a
5 plan of land recorded with the Nantucket County Registry of Deeds in Plan File 8A of land
6 entitled “Plan of Taking for Nantucket County Commissioners School Street in Nantucket

(Surfside) MA.,” dated May 26, 1981, prepared by John J. Shugrue, Inc., recorded with Nantucket County Registry of Deeds in Plan Book 12-C-1, owned by the town of Nantucket pursuant to a Deed recorded with the Nantucket County Registry of Deeds in Book 164, Page 228, to the town of Nantucket acting by and through its Select Board for purposes of conveyance.

SECTION 2. Pursuant to Article 97 of the Amendments to the Constitution of the Commonwealth of Massachusetts and notwithstanding any provisions of any general or special law to the contrary, the town of Nantucket may transfer, sell, convey or otherwise dispose of all or portions of certain parcels of land situated in the town of Nantucket to the Nantucket Islands Land Bank for the purposes pursuant to its enabling legislation and/or to the Sconset Trust, Inc. for open space, conservation and passive recreation purposes, and described as follows:

- Tax Assessor’s Map 74 as Parcel 71, Low Beach Road (portion of former railroad bed)
- Unnamed way bounded by the eastern sideline of Low Beach Road to the Atlantic Ocean and bounded by 2 Low Beach Road, shown on Tax Assessor’s Map 74 as Parcel 74 and 6 Low Beach Road, shown on Tax Assessor’s Map 74 as Parcel 76, Siasconset
- Hawthorne Avenue (between Ocean Avenue and the Atlantic Ocean)
- 35 Grove Lane, shown on Tax Assessor’s Map 71 as Parcel 342

Any such disposition shall be on such terms and conditions as the Select Board deem appropriate, which may include the reservation of restrictions and easements, all as shown on a map filed with the Office of the Town Clerk.

SECTION 3. This act shall take effect upon its passage.